

9:00 AM

Line 4

24-CIV-04638 RAMY KAUFLEDER EDEN VS. GRAND MARTCO, INC.,

RAMY KAUFLEDER EDEN
GRAND MARTCO, INC.,

JARRETT CHARO
DONALD J. DOWLING

Plaintiff's Motion for Settlement Approval

TENTATIVE RULING:

The Motion for Settlement Approval by Plaintiff Ramy Kaufler Eden ("Plaintiff") is continued for one week to September 11, 2026 at 9:00 a.m. for Plaintiff to cure the defects identified below. Due to the continuance, no appearances are needed on September 4, 2026.

The proof of service that is attached to the Notice of Motion and Motion for Settlement Approval, filed on February 23, 2026, is unsigned. The Motion is required to be served not only on Defendant, but also the Attorney General. (Cal. Code Regs, tit. 11, § 3008 [in a private Proposition 65 action, motion and supporting papers must be served on the California Attorney General at least forty-five days prior to the hearing on the motion]; Health and Safety Code, § 25249.7, subd. (f)(5) [plaintiff shall serve motion and all supporting papers on the Attorney General, who may appear and participate in a proceeding without intervening in the case].) Therefore, Plaintiff has not established proper service of this Motion. This defect can be cured by submitting a signed Proof of Service.

The Notice of Hearing also fails to provide the correct date and location of the hearing. At the time of filing, the hearing date on the Notice of Motion was changed from July 10, 2026 to September 4, 2026. The court's record does not reflect the filing or service of an amended notice. Further, the Notice of Hearing incorrectly provided the address for the Southern Branch courthouse in Redwood City. At the time Plaintiff filed this Motion, Department 20 was located at the Central Branch. On April 29, 2026, the court served counsel of record with a Notice of Hearing Location Change for the September 4, 2026 hearing stating that Department 20 is now located at the Northern Branch. The address for the Northern Branch is 1050 Mission Road, South San Francisco, CA 94080. Even if the court were to find that Defendant has notice of the date and location of the hearing as a result of service of the Notice of Hearing Location Change, Plaintiff has not shown the California Attorney General has notice of the correct date and location of the hearing. This defect can be cured by filing and serving an Amended Notice of Hearing on Continued Motion for Settlement Approval, with a signed Proof of Service for service on Defendant and on the Attorney General.

The Court waives an Order after Hearing, and instead the Minute Order will reflect this ruling.

9:00 AM

Line 5

24-CIV-05539 ERAY ERBAY VS. HUSEYIN TOSUN, ET AL

ERAY ERBAY
HUSEYN TOSUN

BRIAN M CARTER
SUSAN E. BISHOP

Cross-Complainants Motion to Quash the Deposition Subpoena for Production of Business Records Served on Bank of America and for Sanctions

TENTATIVE RULING:

For the reasons stated below, Cross-Complainants Huseyin and Sema Tosun’s Motion to Quash, filed March 25, 2026, which seeks an order quashing the Deposition Subpoena for Production of Business Records served on third party Bank of America on February 26, 2026, is GRANTED-in-part and DENIED-in-part. (Code Civ. Proc. § 1987.1)

The Tosuns’ March 25, 2026 Request for Judicial Notice (“RJN”) is GRANTED. (Evid. Code § 452(d).)

Background.

Zeyher Corporation (“Zeyher”) owns/owned a restaurant in San Carlos called Stamp Bar and Grill. From October 2021 to June 2023, Plaintiff Eray Erbay (“Plaintiff”) worked as a waiter for Zeyher at the restaurant. Plaintiff filed this case against the Tosun defendants, who were owners or co-owners of Zeyher, asserting wage and hour claims under the California Labor Code. In October 2024, the Tosun filed a Cross-Complaint (“XC”) against Muslum Caferoglu (“Caferoglu”) for Contractual Indemnification, Equitable Indemnification and Contribution. The XC alleges that Mr. Caferoglu managed the restaurant and is contractually obligated to indemnify the Tosuns for costs and fees that they incurred in defending Plaintiff Erbay’s lawsuit. In June 2024, Mr. Tosun and Mr. Caferoglu settled a dispute involving their respective ownership interests in Zeyher by way of a written Settlement Agreement, which included an indemnification clause stating:

Should any third party bring any claim against one of the Parties arising from the conduct of the other Party related to the operation of Stamp, the Party not named in the claim shall indemnify the other Party against whom the claim is made for 50% of all costs, including court costs and reasonable attorneys’ fees, incurred in the defense of such action unless such claim arises solely from acts or omissions over which only *one Party had exclusive control* in which circumstance the Party shall bear 100% of any liability arising therefrom.

(XC, ¶ 19 [emphasis added].)
